

**Before the
FEDERAL MARITIME COMMISSION**

Docket No. 22-23

Marine Transport Logistics, Inc. v. CMA CGM, S.A.

JOINT STATUS REPORT AND PROPOSED SCHEDULE

In accordance with the Presiding Officer’s December 8, 2022 Order, Counsel for the respective Parties have met and conferred, and jointly submit this Status Report and proposed procedural schedule.

On January 20, 2023, Respondent CMA CGM, S.A. (“Respondent” or “CMA”) served its Verified Answer to the Amended Complaint.

The Parties have conferred with CADRS. The Parties have discussed and agreed on a proposed schedule as follows:

February 3, 2023 – Initial Disclosures due (extended by stipulation)
February 6, 2023 – First day for Initial written discovery requests
March 3, 2023 - Complainant’s expert report(s) (if any) due
March 9, 2023 -Objections/responses to initial written discovery requests due
March 30, 2023 - Depositions may begin to be noticed
April 3, 2023 - Respondent’s rebuttal expert report(s) (if any) due
April 14, 2023 - Last date to serve written discovery requests
May 8, 2023 - Objections/Responses to supplemental written discovery requests due
June 18, 2023 – Complete Depositions of Fact Witnesses
June 19, 2023 – Discovery ends
August 20, 2023 – Opening briefs and proposed findings of fact of each party
September 30, 2023 – Reply briefs of each Party

The Parties note that the Commission’s Rule 141(g) (46 CFR 502.141(g)) requires discovery to be concluded within 150 days of service of the Answer to the Amended Complaint

(timely served by Respondent on January 20, 2023), that is, by June 19, 2023. The agreed proposed schedule meets the requirement of Rule 141(g).

The Initial Order issued by the Commission in this proceeding on September 7, 2022 required the Initial Decision to be issued by September 7, 2023. As a significant amount of time was taken for the Amended Complaint to be filed, that date regrettably must be revised.

The Parties respectfully request that the Presiding Officer adopt the proposed schedule to which they have mutually agreed, as specified above.

Dated: January 30, 2023

Respectfully submitted,

By: /s/ *Garry Pogil*

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CERTIFICATE OF SERVICE

I certify that on the 30th day of January, 2023, a true and correct copy of the foregoing document was served by electronic mail on all counsel of record in accordance with 46 CFR Part 502 and the Commission's Order of May 12, 2020 as follows:

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